

6	Anderson – Conservatorship; 30-2024-01440736	MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES (ROA 151) Petitioner Mark A. Anderson ("Petitioner") moves pursuant to Code of Civil Procedure section 2030.300 to compel Respondent Eric R. Anderson ("Respondent") to further respond to Special Interrogatories 1-63. The motion is unopposed despite proof of service. The evidence before the court is that special interrogatories were served on 5/27/25. Counsel for Petitioner offered an extension of time to respond by 7/10/25 but with objections waived. Responses were served on 7/7/25 and contained a mix of objections and substantive responses. The Responses were unverified. The parties agreed to extend Petitioner's time to bring this motion to 10/10/25. Efforts to meet and confer were unsuccessful. The "General Objections" are procedurally improper. (Code Civ. Proc. §§ 2030.210(a)(3) and 2030.240(b).) Moreover, Respondent waived all objections by not timely responding to the discovery and accepting the conditional extension of time. (Code Civ. Proc. § 2030.290(a).) Respondent's responses to special interrogatories 1-21, 24, 26-30, 32-35, 38, 39, 41, 42, 44, 45, 47, 48, 50, 51, 53, and 54 do not comply with Code of Civil Procedure section 2030.220. Respondent's objections to special interrogatories 22, 31, and 37 are without merit. Respondent is making a contention as to the reason he is "concerned." Moreover, Respondent waived objections. As to special interrogatories. 23, 40, 49, and 52: The court finds the substantive answers are sufficient, though they must be verified. (Code Civ. Proc. § 2030.250.) Moreover, if any information was withheld based on the General Objections, the answers must be modified. As to special interrogatories 25, 43, and 46: The substantive responses are insufficient. Petitioner must state how, when, where, and by whom he was "informed." Further, Respondent must state the factual basis for his understandings, concerns, and beliefs. As to special interrogatory 36: An initial response must be provided.
---	--	---

As to special interrogatories **55 and 58**: The substantive responses are insufficient. Respondent states some but not all facts that support his contention as evidenced by the phrase, "In addition to information that he has learned from others and from his own observations." Respondent must state all facts regarding the information he has learned and observed.

As to special interrogatories **56, 57, 59, and 60**: The substantive responses are sufficient. However, they must be verified and may need to be modified in light of the further responses required for special interrogatory nos. 55 and 58.

As to special interrogatory **61**: The objection on the ground of privacy is without merit. Bankruptcy filings are public record. Special interrogatories **62 and 63** must be answered.

Respondent **shall** serve further responses to special interrogatories 1-63, under oath and without objection, within 20 days of notice of this ruling, extended for method of service.

Pursuant to Code of Civil Procedure sections 2023.010 and 2030.290(c) and California Rules of Court, Rule 3.1348, the court imposes reasonable sanctions of **\$1,750** on Respondent payable to Anthony Marcus Law Firm within 30 days of notice of this ruling, extended for method of service, or any later date as agreed upon by the parties in writing.

**MOTION TO COMPEL FURTHER RESPONSES TO
REQUESTS FOR PRODUCTION OF DOCUMENTS (ROA
143)**

Petitioner Mark A. Anderson ("Petitioner") moves pursuant to Code of Civil Procedure section 2031.300 to compel Respondent Eric R. Anderson ("Respondent") to further respond to Requests for Production of Documents, set one.

The motion is unopposed despite proof of service.

The evidence before the court is that requests for production of documents were served on 5/27/25. Counsel for Petitioner offered an extension of time to respond by 7/10/25 but with objections waived. Responses were served on 7/7/25 and contained a mix of objections and substantive responses. The Responses were unverified. The parties agreed to extend Petitioner's time to bring this motion to 10/10/25. Efforts to meet and confer were unsuccessful.

The "General Objections" are procedurally improper. (Code Civ. Proc. §§ 2031.210(a) and 2031.240(b).) Moreover, Respondent waived all objections by not timely responding to

the discovery and accepting the conditional extension of time. (Code Civ. Proc. § 2031.300.)

As to requests **1-27 and 33**: Respondent's responses do not comply with Code of Civil Procedure sections 2031.220.

As to requests **28-32**: The motion to compel further response is **denied**. Though Respondent waived his objections, the moving party on a motion to compel further responses to requests for production of documents has the burden of setting forth specific facts showing good cause justifying the discovery. (Code Civ. Proc. § 2031.310(b)(1).) Petitioner has not met this burden. Respondent's financial status might make obtaining a bond more difficult, but not necessarily impossible. Moreover, there are less intrusive means of discovering whether and to what extent Respondent's financial status will impede his ability to obtain a bond.

Respondent **shall** serve further responses to request for production of documents 1-27 and 33, under oath and without objection, within 20 days of notice of this ruling, extended for method of service.

Pursuant to Code of Civil Procedure sections 2023.010 and 2031.300(c) and California Rules of Court, Rule 3.1348, the court imposes reasonable sanctions of **\$1,750** on Respondent payable to Anthony Marcus Law Firm within 30 days of notice of this ruling, extended for method of service, or any later date as agreed upon by the parties in writing.

**MOTION TO COMPEL FURTHER RESPONSES TO
REQUESTS FOR ADMISSION (ROA 139)**

Petitioner Mark A. Anderson ("Petitioner") moves pursuant to Code of Civil Procedure section 2033.290 to compel Respondent Eric R. Anderson ("Respondent") to further respond to Requests for Admission, set one.

The motion is unopposed despite proof of service.

The evidence before the court is that request for admission were served on 5/27/25. Counsel for Petitioner offered an extension of time to respond by 7/10/25 but with objections waived. Responses were served on 7/7/25 and contained a mix of objections and substantive responses. The Responses were unverified. The parties agreed to extend Petitioner's time to bring this motion to 10/10/25. Efforts to meet and confer were unsuccessful.

The "General Objections" are procedurally improper. (Code Civ. Proc. §§ 2033.210(a) and 2033.230(b).) Moreover, Respondent waived all objections by not timely responding to the discovery and accepting the conditional extension of time. (Code Civ. Proc. § 2033.280(a).)

As to requests **11, 17, 26, 44, and 45**: The objections are without merit. Moreover, Respondent waived objections.

As to requests **12, 16, 29, 32, 37 and 40**: The substantive responses are sufficient, though the motion to compel must still be granted as the responses are unverified. (Code Civ. Proc. § 2033.240.) Respondent answered each of these requests with an admission or denial. Petitioner's contention that these answers are "untruthful" is not a reason to compel a further response. Untruthful responses may be used to impeach Respondent, and/or Petitioner may seek cost of proof sanctions pursuant to Code of Civil Procedure section 2033.420.

As to requests **18, 19, 20, 21, 22, 23, 24, 25, 27, 35, 36, 39, 41, and 43**: The substantive responses do not comply with Code of Civil Procedure section 2033.220(c).

Respondent **shall** serve further responses to all request for admission, under oath and without objection, within 20 days of notice of this ruling, extended for method of service.

Pursuant to Code of Civil Procedure sections 2023.010 and 2033.290(c) and California Rules of Court, Rule 3.1348, the court imposes reasonable sanctions of **\$1,750** on Respondent payable to Anthony Marcus Law Firm within 30 days of notice of this ruling, extended for method of service, or any later date as agreed upon by the parties in writing.

MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES (ROA 147)

Petitioner Mark A. Anderson ("Petitioner") moves pursuant to Code of Civil Procedure section 2030.300 to compel Respondent Eric R. Anderson ("Respondent") to further respond to Form Interrogatories set one.

The motion is unopposed despite proof of service.

The evidence before the court is that form interrogatories were served on 5/27/25. Counsel for Petitioner offered an extension of time to respond by 7/10/25 but with objections waived. Responses were served on 7/7/25 and contained a

		mix of objections and substantive responses. The Responses were unverified. The parties agreed to extend Petitioner's time to bring this motion to 10/10/25. Efforts to meet and confer were unsuccessful. As to form interrogatories 2.1(b) and (c), 2.2, 2.5, 2.6, and 2.7: Respondent's objections are without merit. Moreover, Respondent waived all objections by not timely responding to the discovery and accepting the conditional extension of time. (Code Civ. Proc. § 2030.290(a).) As to form interrogatory 17.1: Respondent's alleged response as set forth in Petitioner's separate statement (ROA 131, 10:17-20) does not match the response provided in Respondent's responses to form interrogatories attached as Exhibit 4 to the Declaration of Anthony Marcus (ROA 147, Marcus Decl., Ex. 4, 5:14-15:1). Thus, the court makes no finding as to the substance of said response. The response must still be verified. Respondent shall serve further responses to all form interrogatories, under oath and without objection, within 20 days of notice of this ruling, extended for method of service. Pursuant to Code of Civil Procedure sections 2023.010 and 2030.290(c) and California Rules of Court, Rule 3.1348, the court imposes reasonable sanctions of \$1,750 on Respondent payable to Anthony Marcus Law Firm within 30 days of notice of this ruling, extended for method of service, or any later date as agreed upon by the parties in writing.
7	Martinez Cano - Guardianship; 30-2025-01509000	MOTION TO CONTINUE HEARING <i>Notice of Withdrawal filed 05/14/2026</i>
8	Justin – Trust; 30-2023-01357386	MOTION COMPEL ANSWERS TO INTERROGATORIES Respondent James Hicklin's Motion to Compel Further Responses to First Set of Special Interrogatories and Request for Sanctions (ROA 449) is DENIED as moot regarding the request for further responses. On the issue of sanctions, Respondent should be prepared to explain more fully the relevance of the subject interrogatories, which inquire into the relationship, if any, between petitioner and his counsel prior to the retention of counsel for this proceeding. In the motion, Respondent